

8/H CJDA 38

JUDGMENT SHEET

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Crl. Appeal No.30624-J/2024

Muhammad Imran alias Bao

versus

The State

J U D G M E N T

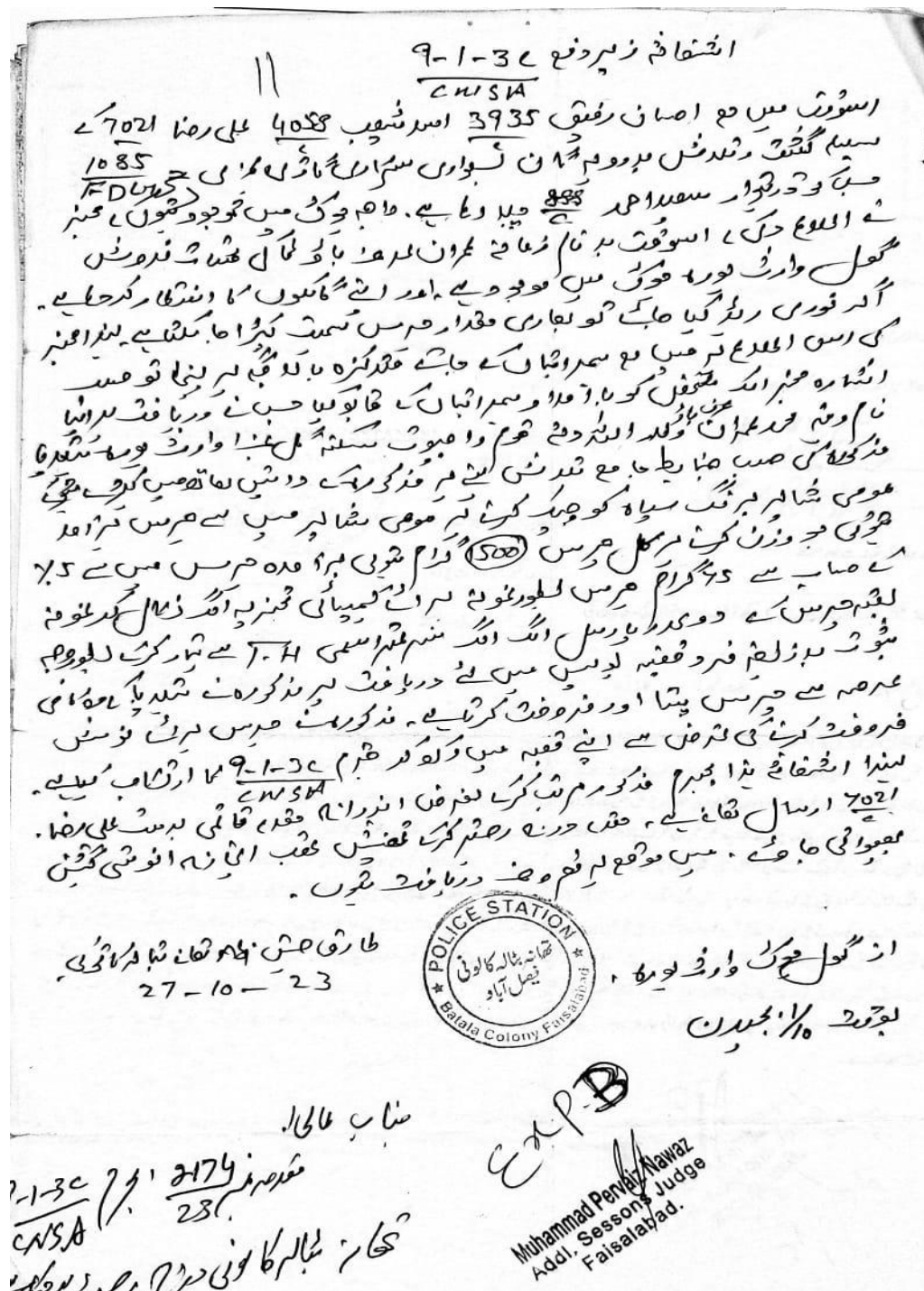
|                  |                                                                        |
|------------------|------------------------------------------------------------------------|
| Date of hearing: | <u>20.04.2026.</u>                                                     |
| Appellant by:    | Barrister Haider A. Najafi, Advocate/Defence Council at state expense. |
| State by:        | Mr.Waqas Anwar, Deputy Prosecutor General.                             |

**Farooq Haider, J. :-** This appeal has been filed by **Muhammad Imran alias Bao** (appellant) through jail authorities against the judgment dated: 02.04.2024 passed by learned Additional Sessions Judge/Judge Special Court CNS, Faisalabad/trial court whereby in case arising out of F.I.R. No.2174/2023 dated: 27.10.2023 registered under Section: 9(1)3(c) of the Control of Narcotic Substances Act, 1997 at Police Station: Batala Colony, District: Faisalabad, trial court has convicted and sentenced the appellant as under:-

*under Section: 9(i)3(c) of the Control of Narcotic Substances Act, 1997 to Rigorous Imprisonment for four years and six months with fine of Rs.20,000/- and in default thereof to further undergo Simple Imprisonment for 05-months. Benefit of Section 382-B Cr.P.C. was also extended to the appellant.*

2. Briefly, as per case of prosecution narrated in the written statement/ استغاثہ (Exh.PB) sent by Tariq Hussain, A.S.I. (complainant/PW-2), appellant was apprehended as suspect by the complainant and other police officials and on his personal search, from black coloured shopper caught by him in his right hand charas was recovered from his possession; on weighing, same was found 1500-

grams; out of the recovered charas, with the ratio of 5%, 75-grams charas was separated as sample for chemical analysis; sample and remaining case property of charas were secured into separate sealed parcels with the stamp of “T.H.” and taken into possession vide recovery memo. Exh.PA; for ready reference, relevant portion of written statement/استغاثہ (Exh.PB) is hereby scanned below: -



After investigation, challan report was sent to the court against the appellant and charge was framed against him, to which he pleaded not guilty and claimed trial; prosecution examined six witnesses and also produced report of Punjab Forensic Science Agency as Exh.PE; trial court recorded statement of the appellant under Section: 342 Cr.P.C. wherein he refuted allegations

leveled against him however neither opted to produce any evidence in his defence nor to give statement on oath under Section: 340(2) Cr.P.C. Trial court after hearing learned counsel for the parties, passed the impugned judgment wherein appellant was convicted and sentenced as mentioned above.

3. Learned Deputy Prosecutor General submits that though as per paragraph No.19 of the impugned judgment dated: 02.04.2024 passed by learned Additional Sessions Judge/Judge Special Court CNS, Faisalabad, appellant was held guilty for keeping in his possession charas weighing 1500-grams and he was convicted under Section: 9(1)3(c) of the Control of Narcotic Substances Act, 1997 yet as per paragraph No.20 while seeking guidance from Ghulam Murtaza's case (PLD 2009 Lahore 362), he has been sentenced to undergo Rigorous Imprisonment for four years and six months with fine of Rs.20,000/-, in default of payment of fine to undergo Simple Imprisonment for 05-months and benefit of Section: 382-B Cr.P.C. has also been extended to him. Paragraph No.19 and 20 of the impugned judgment are hereby reproduced for ready reference:-

*“19. As prosecution has proved the charge against the accused beyond shadow of reasonable doubt, therefore, accused Imran alias Baoo is held guilty for keeping in his possession Charas weighing 1500-grams, resultantly, he is convicted under section 9(i)3(c) Control of Narcotics Substance Act, 1997.*

*20. Now coming to the quantum of sentence, seeking guidance from **Ghulam Murtaza's case (PLD 2009 Lahore 362)**, convict Muhammad Imran alias Baoo is sentenced to undergo Rigorous Imprisonment for four years and six months and fine Rs.20000/- and in default of payment of fine, Simple Imprisonment for 05-Months. Benefit of Section 382-B Cr.P.C. is extended to the convict.”*

Learned Deputy Prosecutor General further submits that sentence which can be awarded to the convict under Section: 9(1)3(c) of the Control of Narcotic Substances Act, 1997 is imprisonment which may extend to fourteen years but shall not be less than nine years alongwith fine which may be upto four hundred thousand rupees but not less than eighty thousand rupees; so, minimum sentence which can be awarded under Section: 9(1)3(c) of the Act (ibid) is nine years and fine not less than eighty thousand rupees. Learned Deputy Prosecutor General further adds that trial court while awarding sentence to the appellant/convict (as detailed above) in this case has not considered minimum threshold of sentence of imprisonment as well as fine, therefore, sentence awarded to the appellant is against the law, hence impugned judgment is not sustainable. He

finally prays for setting aside impugned judgment and remanding the case to the trial court for re-writing the judgment.

4. Learned defence counsel for the appellant when confronted with the same, could not controvert aforementioned contention of learned Deputy Prosecutor General and very fairly submits that he has no objection on setting aside the impugned judgment and remanding the case to the trial court for re-writing the judgment.

5. **After hearing learned counsel for the appellant, learned Deputy Prosecutor General and going through the record,** it has been noticed that case was registered against the appellant on 27.10.2023 under Section: 9(1)3(c) of the Control of Narcotic Substances Act, 1997 at Police Station: Batala Colony, District: Faisalabad with the allegation of recovery of 1500-grams charas from him, charge was also framed against the appellant under Section: 9(i)3(c) of the Act (ibid) on 08.01.2024 and he was also convicted vide impugned judgment under Section: 9(i)3(c) of the Act (ibid), however, he was sentenced while seeking guidance from Ghulam Murtaza's case (PLD 2009 Lahore 362), as detailed above. It is relevant to mention here that original Section: 9 (erstwhile) of the Act (ibid) was as under:-

**“9. Punishment for contravention of sections 6, 7 and 8.-**  
Whoever contravenes the provisions of sections 6, 7 or 8 shall be punishable with-

- (a) Imprisonment which may extend to two years, or with fine, or with both, if the quantity of the narcotic drug, psychotropic substance or controlled substance is one hundred grams or less;
- (b) Imprisonment which may extend to seven years and shall also be liable to fine, if the quantity of the narcotic drug, psychotropic substance or controlled substance exceeds one hundred grams but does not exceed one kilogram.
- (c) Death or imprisonment for life, or imprisonment for a term which may extend to fourteen years and shall also be liable to fine which may be upto one million rupees, if the quantity; of narcotic drug psychotropic substance or controlled substance exceeds the limits specified in clause (b),  
Provided that if quantity exceeds ten kilogram the punishment shall not be less than imprisonment for life.”

Perusal of aforementioned erstwhile Section: 9 reveals that it was in composite form and providing punishment on the basis of quantity of the narcotic drug, psychotropic or controlled substance. Since it (Section: 9 erstwhile) was not providing separate punishment/sentence for each individual category of contraband, therefore, while feeling necessity for fixing threshold of

punishment for each category of contraband separately, Sentencing Policy was provided in Ghulam Murtaza's case (supra).

It goes without saying that Legislature substituted erstwhile Section: 9 through the Control of Narcotic Substances (Amendment) Act, 2022 (Act No.XX of 2022), which received the assent of the President on the 2<sup>nd</sup> September, 2022, published in The Gazette of Pakistan (Extraordinary) on Tuesday, September 6, 2022 and as per sub-Section: (2) of its Section: 1, it came into force at once. Section: 9 of the Act ibid in its present form is as under:-

**"9 Punishment for contravention of sections 6, 7 and 8.—(1) Whoever contravenes the provisions of sections 6, 7 and 8 regarding narcotic drugs shall be punished with punishment as given in column (3) of the TABLE below with regard to offence committed as mentioned in column (2) thereof, namely:—**

**TABLE**

| S. No. | Offence             |                                 | Punishment                                                                                                                                                                                           |
|--------|---------------------|---------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|        | Type of Narcotics   | Quantity                        |                                                                                                                                                                                                      |
| (1)    | (2)                 |                                 | (3)                                                                                                                                                                                                  |
| 1      | Bhang               | (a) Up to 999 grams.            | imprisonment which may extend to three years but shall not be less than six months along-with fine which may be up to ten thousand rupees.                                                           |
|        |                     | (b) 1000 grams to 9999 grams.   | imprisonment which may extend to seven years but shall not be less than three years along-with fine which may be up to one hundred thousand rupees but not less than ten thousand rupees.            |
|        |                     | (c) 10000 grams to 19999 grams. | imprisonment which may extend to fourteen years but shall not be less than seven years along-with fine which may be up to two hundred thousand rupees but not less than one hundred thousand rupees. |
|        |                     | (d) 20000 grams or more.        | imprisonment which may extend to life imprisonment but shall not be less than fourteen years along-with fine which shall not be less than two hundred thousand rupees.                               |
| 2      | Post or poppy straw | (a) Up to 999 grams.            | imprisonment which may extend to four years but shall not be less than eight months along-with fine which may be up to twenty thousand rupees.                                                       |

| S. No. | Offence                        |                                 | Punishment                                                                                                                                                                                               |
|--------|--------------------------------|---------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|        | Type of Narcotics              | Quantity                        |                                                                                                                                                                                                          |
| (1)    |                                | (2)                             | (3)                                                                                                                                                                                                      |
|        |                                | (b) 1000 grams to 9999 grams.   | imprisonment which may extend to eight years but shall not be less than four years along-with fine which may be up to two hundred thousand rupees but shall not be less than twenty thousand rupees.     |
|        |                                | (c) 10000 grams to 14999 grams. | imprisonment which may extend to fourteen years but shall not be less than eight years along-with fine which may be up to three hundred thousand rupees but not less than two hundred thousand rupees.   |
|        |                                | (d) 15000 grams or more.        | imprisonment which may extend to life imprisonment but shall not be less than fourteen years along-with fine which shall not be less than three hundred thousand rupees.                                 |
| 3      | Charas                         | (a) Up to 499 grams.            | imprisonment which may extend to five years but shall not be less than ten months along-with fine which may be up to forty thousand rupees.                                                              |
|        |                                | (b) 500 grams to 999 grams.     | imprisonment which may extend to nine years but shall not be less than five years along-with fine which may be up to eighty thousand rupees but not less than forty thousand rupees.                     |
|        |                                | (c) 1000 grams to 4999 grams.   | imprisonment which may extend to fourteen years but shall not be less than nine years along-with fine which may be up to four hundred thousand rupees but not less than eighty thousand rupees.          |
|        |                                | (d) 5000 grams to 9999 grams.   | imprisonment which may extend to twenty years but shall not be less than fourteen years along-with fine which may be up to eight hundred thousand rupees but not less than four hundred thousand rupees. |
|        |                                | (e) 10000 grams or more.        | imprisonment which may extend to life imprisonment but shall not be less than twenty years along-with fine which shall not be less than eight hundred thousand rupees.                                   |
| 4      | Hashish oil and liquid Hashish | (a) Up to 499 grams.            | imprisonment which may extend to seven years but shall not be less than fourteen months along-with fine which may be up to forty thousand rupees.                                                        |

| S. No. | Offence           |                               | Punishment                                                                                                                                                                                              |
|--------|-------------------|-------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|        | Type of Narcotics | Quantity                      |                                                                                                                                                                                                         |
| (1)    |                   | (2)                           | (3)                                                                                                                                                                                                     |
|        |                   | (b) 500 grams to 999 grams.   | imprisonment which may extend to fourteen years but shall not be less than seven years along-with fine which may be up to eighty thousand rupees but not less than forty thousand rupees.               |
|        |                   | (c) 1000 grams to 4999 grams. | imprisonment which may extend to twenty years but shall not be less than fourteen years along-with fine which may be up to four hundred thousand rupees but not less than eighty thousand rupees.       |
|        |                   | (d) 5000 grams or more.       | imprisonment which may extend to life imprisonment but shall not be less than twenty years along-with fine which shall not be less than four hundred thousand rupees.                                   |
| 5      | Opium             | (a) Up to 499 grams.          | imprisonment which may extend to six years but shall not be less than one year along-with fine which may be up to fifty thousand rupees.                                                                |
|        |                   | (b) 500 grams to 999 grams.   | imprisonment which may extend to nine years but shall not be less than six years along-with fine which may be up to one hundred thousand rupees but not less than fifty thousand rupees.                |
|        |                   | (c) 1000 grams to 2999 grams. | imprisonment which may extend to twelve years but shall not be less than nine years along-with fine which may be up to three hundred thousand rupees but not less one hundred thousand rupees.          |
|        |                   | (d) 3000 grams to 4999 grams. | imprisonment which may extend to fifteen years but shall not be less than twelve years along-with fine which may be up to five hundred thousand rupees but not less than three hundred thousand rupees. |
|        |                   | (e) 5000 grams to 7999 grams. | imprisonment which may extend to twenty years but shall not be less than fifteen years along-with fine which may be up to eight hundred thousand rupees but not less than five hundred thousand rupees. |

| S. No. | Offence             |                               | Punishment                                                                                                                                                                                                          |
|--------|---------------------|-------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|        | Type of Narcotics   | Quantity                      |                                                                                                                                                                                                                     |
| (1)    | (2)                 |                               | (3)                                                                                                                                                                                                                 |
|        |                     | (f) 8000 grams or more.       | imprisonment which may extend to life imprisonment but shall not be less than twenty years along-with fine which shall not be less than eight hundred thousand rupees.                                              |
| 6      | Heroin and morphine | (a) Up to 99 grams.           | imprisonment which may extend to seven years but shall not be less than eighteen months along-with fine which may be up to twenty five thousand rupees.                                                             |
|        |                     | (b) 100 grams to 499 grams.   | imprisonment which may extend to ten years but shall not be less than seven years along-with fine which may be up to one hundred and twenty-five thousand rupees but not less than twenty-five thousand rupees.     |
|        |                     | (c) 500 grams to 1999 grams.  | imprisonment which may extend to fourteen years but shall not be less than ten years along-with fine which may be up to five hundred thousand rupees but not less than one hundred and twenty-five thousand rupees. |
|        |                     | (d) 2000 grams to 3999 grams. | imprisonment which may extend to twenty years but shall not be less than fourteen years along-with fine which may be up to one million rupees but not less than five hundred thousand rupees.                       |
|        |                     | (e) 4000 grams to 5999 grams. | imprisonment may be for life but shall not be less than twenty years along-with fine which may be up to one and half million rupees but shall not be less than one million rupees.                                  |
|        |                     | (f) 6000 grams or more.       | punishment for death or imprisonment which shall not be less than life along-with fine which may extend to two million but shall not be less than one and half million rupees.                                      |
| 7      | Cocaine             | (a) Up to 99 grams.           | imprisonment which may extend to seven years but shall not be less than eighteen months along-with fine up to fifty thousand rupees.                                                                                |
|        |                     | (b) 100 grams to 999 grams.   | imprisonment which may extend to fifteen years but shall not be less than seven years along-with fine which may                                                                                                     |

| S. No. | Offence           |                               | Punishment                                                                                                                                                                                                             |
|--------|-------------------|-------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|        | Type of Narcotics | Quantity                      |                                                                                                                                                                                                                        |
| (1)    | (2)               |                               | (3)                                                                                                                                                                                                                    |
|        |                   |                               | be up to five hundred thousand rupees but not less than fifty thousand rupees.                                                                                                                                         |
|        |                   | (c) 1000 grams to 4999 grams. | imprisonment which may extend to twenty years but shall not be less than fifteen years along-with fine which may be up to two million and five hundred thousand rupees but not less than five hundred thousand rupees. |
|        |                   | (d) 5000 grams or more.       | punishment for death or imprisonment for life but imprisonment shall not be less than twenty years along-with fine which shall not be less than two million and five hundred thousand rupees.                          |

Provided that if an offence is committed relating to narcotic drug inside or near a school, college, university, educational setting or any other educational institution maximum punishment provided for that offence shall be awarded:

Provided further that if any person who has previously been convicted for any offence under this Act is subsequently convicted for the offence relating to narcotic drug, he shall be convicted with maximum punishment provided for that offence.

(2) Whoever contravenes the provisions of sections 6, 7 and 8 regarding psychotropic substances shall be punished with punishment as given in column (3) of the TABLE below with regard to quantity of psychotropic substances given in column (2) thereof, namely:—

TABLE

| Sr. No. | Offence with regard to quantity of psychotropic substance | Punishment                                                                                                                                     |
|---------|-----------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                       | (3)                                                                                                                                            |
| 1       | Up to 20 grams.                                           | imprisonment which may extend to one year but shall not be less than two months along-with fine which may be up to fifty thousand rupees.      |
| 2       | More than 20 grams and up to 50 grams.                    | imprisonment which may extend to two years but shall not be less than one year along-with fine which may be up to one hundred thousand rupees. |



| Sr. No. | Offence with regard to quantity of psychotropic substance | Punishment                                                                                                                                                   |
|---------|-----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                       | (3)                                                                                                                                                          |
| 3       | More than 50-grams and up to 100 grams.                   | imprisonment which may extend to three years but shall not be less than two years along-with fine which may be up to two hundred thousand rupees.            |
| 4       | More than 100-grams and up to 500 grams.                  | imprisonment which may extend to five years but shall not be less than three years along-with fine which may be up to four hundred thousand rupees.          |
| 5       | More than 500-grams and up to one kilo grams.             | imprisonment which may extend to seven years but shall not be less than five years along-with fine which may be up to eight hundred thousand rupees.         |
| 6       | More than one kilo grams and up to two kilo grams.        | imprisonment which may extend to ten years but shall not be less than seven years along-with fine which may be up to twelve hundred thousand rupees.         |
| 7       | More than two kilo grams and up to three kilo grams.      | imprisonment which may extend to fourteen years but shall not be less than ten years along-with fine which may be up to sixteen hundred thousand rupees.     |
| 8       | More than three kilo grams and up to four kilo grams.     | imprisonment which may extend to twenty years but shall not be less than fourteen years along-with fine which may be up to eighteen hundred thousand rupees. |
| 9       | Exceeding four kilo grams.                                | imprisonment which shall not be less than life imprisonment along-with fine which shall not be less than two million rupees.                                 |

Provided that if any offence is committed relating to psychotropic substance inside or near a school, college, university, educational setting or any other educational institution, he shall be punishable with maximum punishment provided for that offence:

Provided further that if any person who has previously been convicted for any offence under this Act is subsequently convicted for the offence relating to psychotropic substance and quantity does not exceed two kilograms than he shall be convicted with maximum punishment provided for that offence:

Provided also that if the quantity of psychotropic substance in subsequent offence exceeds two kilograms, the punishment shall not be less than life imprisonment:

Provided further that if recovered psychotropic substance is methamphetamine (ICE) given at serial number 47 of the Schedule-I to this Act and quantity exceeds four kilograms, punishment may be death or life imprisonment and fine which may not be less than two and half million.

(3) Whoever contravenes the provisions of sections 6, 7 and 8 regarding controlled substances specified in Table-I and Table-II of the Schedule-II shall be punishable with punishment given in column (3) of the following Table-I and Table-II respectively with regard to offence committed as mentioned in column (2) thereof, namely:—

TABLE-I

| Sr. No. | Offence with regard to quantity of controlled substance | Punishment                                                                                                                                                   |
|---------|---------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                     | (3)                                                                                                                                                          |
| 1       | Up to 100 grams.                                        | imprisonment which may extend to six months but shall not be less than two months along-with fine which may be up to twenty-five thousand rupees.            |
| 2       | More than 100 grams and up to 500 grams.                | imprisonment which may extend to one year but shall not be less than six months along-with fine which may be up to fifty thousand rupees.                    |
| 3       | More than 500 grams and up to one kilo grams.           | imprisonment which may extend to three years but shall not be less than one year along-with fine which may be up to one hundred thousand rupees.             |
| 4       | More than one kilo grams and up to two kilo grams.      | imprisonment which may extend to five years but shall not be less than three years along-with fine which may be up to one hundred and fifty thousand rupees. |
| 5       | More than two kilo grams and up to five kilo grams.     | imprisonment which may extend to seven years but shall not be less than five years along-with fine which may be up to three hundred thousand rupees.         |



| Sr. No. | Offence with regard to quantity of controlled substance | Punishment                                                                                                                                             |
|---------|---------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                     | (3)                                                                                                                                                    |
| 6       | More than five kilo grams and up to seven kilo grams.   | imprisonment which may extend to ten years but shall not be less than seven years along-with fine which may be up to five hundred thousand rupees.     |
| 7       | More than seven kilo grams and up to ten kilo grams.    | imprisonment which may extend to fourteen years but shall not be less than ten years along-with fine which may be up to seven hundred thousand rupees. |
| 8       | Exceeding ten kilo grams.                               | imprisonment shall not be less than life imprisonment along-with fine which may be up to one million rupees.                                           |

TABLE-II

| Sr. No. | Offence with regard to quantity of controlled substance | Punishment                                                                                                                                           |
|---------|---------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                     | (3)                                                                                                                                                  |
| 1       | Up to one kilo grams.                                   | imprisonment which may extend to six months but shall not be less than two months along-with fine which may be up to ten thousand rupees.            |
| 2       | More than one kilo grams and up to three kilo grams.    | imprisonment which may extend to one year but shall not be less than six months along-with fine which may be up to fifty thousand rupees.            |
| 3       | More than three kilo grams and up to five kilo grams.   | imprisonment which may extend to three years but shall not be less than one year along-with fine which may be up to one hundred thousand rupees.     |
| 4       | More than five kilo grams and up to ten kilo grams.     | imprisonment which may extend to five years but shall not be less than three years along-with fine which may be up to two hundred thousand rupees.   |
| 5       | More than ten kilo grams and up to twenty kilo grams.   | imprisonment which may extend to seven years but shall not be less than five years along-with fine which may be up to three hundred thousand rupees. |

| Sr. No. | Offence with regard to quantity of controlled substance  | Punishment                                                                                                                                             |
|---------|----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| (1)     | (2)                                                      | (3)                                                                                                                                                    |
| 6       | More than twenty kilo grams and up to thirty kilo grams. | imprisonment which may extend to ten years but shall not be less than five years along-with fine which may be up to five hundred thousand rupees.      |
| 7       | More than thirty kilo grams and up to fifty kilo grams.  | imprisonment which may extend to fourteen years but shall not be less than ten years along-with fine which may be up to seven hundred thousand rupees. |
| 8       | Exceeding fifty kilo grams.                              | imprisonment shall not be less than life imprisonment along-with fine which may be up to one million rupees.                                           |

Provided that if any person who has previously been convicted for any offence under this Act, is subsequently convicted for the offence relating to controlled substances and quantity does not exceed from six kilograms then he shall be convicted with maximum punishment provided for that offence:

Provided further that when the quantity of controlled substances in subsequent offence exceeds from six kilograms the accused shall be punished not less than life imprisonment:

Provided further also that if any accused is found guilty of trafficking narcotic drug, psychotropic substance or controlled substance into Pakistan or from Pakistan, he shall be convicted with maximum punishment provided for that offence.

9(A) (1) Notwithstanding anything contained in any other law or prison rules for the time being in force, no remissions in any sentence shall be allowed to a person, who is convicted under this Act:

Provided that in case of a juvenile or female convicted and sentenced for an offence under this Act, remission, may be granted as deemed appropriate by the Federal Government:

(2) Notwithstanding anything contained in any law or rules for the time being in force, neither probation in any sentence shall be allowed nor any accused convicted under this Act shall be released on parole:

Provided that if the convicted accused is a juvenile or female, he can be released on probation on parole as per relevant laws and rules.

(3) Notwithstanding anything contained in any other law for time being in force, imprisonment for life under this Act means imprisonment in jail for the period of twenty-five years.”

Present Section: 9 of the Act (ibid) reflects that according to the quantity as well as type of narcotic substance, maximum and minimum threshold of punishment/sentence has been provided in the same and it has been further noticed that as per Section: 9(1)3(c) of the Act (ibid), punishment has been provided for the quantity of charas weighing 1000-grams to 4999-grams as imprisonment which may extend to fourteen years but shall not be less than nine years alongwith fine which may be upto four hundred thousand rupees but not less than eighty thousand rupees and same is hereby separately again scanned below for ready reference:-

“9 Punishment for contravention of sections 6, 7 and 8.—(1) Whoever contravenes the provisions of sections 6, 7 and 8 regarding narcotic drugs shall be punished with punishment as given in column (3) of the TABLE below with regard to offence committed as mentioned in column (2) thereof, namely:—

|   |        |                               |                                                                                                                                                                                                 |
|---|--------|-------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 3 | Charas | (a) Up to 499 grams.          | imprisonment which may extend to five years but shall not be less than ten months along-with fine which may be up to forty thousand rupees.                                                     |
|   |        | (b) 500 grams to 999 grams.   | imprisonment which may extend to nine years but shall not be less than five years along-with fine which may be up to eighty thousand rupees but not less than forty thousand rupees.            |
|   |        | (c) 1000 grams to 4999 grams. | imprisonment which may extend to fourteen years but shall not be less than nine years along-with fine which may be up to four hundred thousand rupees but not less than eighty thousand rupees. |

Hence, when the trial court held the appellant guilty for keeping in possession charas weighing 1500-grams and convicted him under Section: 9(1)3(c) of the Act (ibid) then punishment was to be awarded to the appellant as per present Section: 9 of the Act (ibid) which was in force on the day of occurrence/alleged recovery in this case i.e. 27.10.2023 and it was imprisonment which may extend to fourteen years but not less than nine years alongwith fine which may be upto four hundred thousand rupees but not less than eighty thousand rupees (as detailed above). It is important to mention here that when Section: 9 (erstwhile) of the Act (ibid) has been amended through the Control of Narcotic Substances (Amendment) Act, 2022 and now present Section: 9 has provided maximum as well as minimum quantum of punishment as per weight as well as type of narcotic substance then punishment is to be awarded while keeping in view the same i.e. punishment provided in present Section: 9 of the Act (ibid) and not in the light of Sentencing Policy provided in Ghulam Murtaza’s case (supra).

Since on the day of alleged recovery in this case i.e. 27.10.2023 minimum threshold of punishment provided under Section: 9(1)3(c) of the Act (ibid) regarding charas was nine years alongwith fine not less than eighty thousand rupees, therefore, punishment awarded to the appellant i.e. Rigorous Imprisonment for four years and six months alongwith fine of Rs.20000/- and in default of payment of fine Simple Imprisonment for five months, is against the law and said error has on the one hand caused failure of justice whereas on the other hand same is not curable.

6. Resultantly, without touching merits of the case, in view of what has been discussed above and with the concurrence of leaned counsel for the appellant, learned Deputy Prosecutor General as well as for the safe administration of justice, impugned judgment dated: 02.04.2024 passed by learned Additional Sessions Judge/Judge Special Court CNS, Faisalabad is hereby set aside, case is remanded to the trial court for re-writing of judgment within a period of one month after receipt of attested copy of this judgment after hearing all concerned and during said period appellant will be treated as undertrial prisoner. Appellant will be produced before the trial court on 29.04.2026 for further proceedings as mentioned above.

**(ALI ZIA BAJWA)**  
**JUDGE**

**(FAROOQ HAIDER)**  
**JUDGE**

**Approved for reporting.**

**(ALI ZIA BAJWA)**  
**JUDGE**

**(FAROOQ HAIDER)**  
**JUDGE**

This judgment has been dictated,  
pronounced, prepared and signed  
on 20.04.2026.

\*Ifthikhar Ahmad\*